Not Approved for use in Contested Cases

IN THE CIRCUIT COURT OF _____ , MISSOURI
(County where court is located. City of Saint Louis is considered a county.)

In re the Marriage of:

_____ _____ _____ _____
(First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*
Petitioner, *(Enter your full legal name above)*

-and-

_____ _____ _____ _____
(First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*
Respondent. *(Enter your spouse's full legal name above)*

Case Number _____
(Will be assigned when case is filed)

Division Number _____
(Will be assigned when case is filed)

Judgment and Decree of Dissolution of Marriage

Parties

1. Appearances *(Check all that apply)*
   - ☐ Petitioner appears in person.
   - ☐ Petitioner appears by attorney.
   - ☐ Cause submitted upon affidavit of Petitioner.
   - ☐ Respondent appears in person.
   - ☐ Respondent appears by attorney.
   - ☐ Cause submitted upon affidavit of Respondent.
   - ☐ Guardian ad Litem appears in person.
   - ☐ Third Party _____ _____ _____ _____ appears in person.
     (First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*
   - ☐ Third Party _____ _____ _____ _____ appears by attorney.
     (First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*

2. The last four digits of the Petitioner's Social Security Number are _____ and the last four digits of the Respondent's Social Security Number are _____ .

3. *Check one of the two boxes.*
   - ☐ Respondent is not on active duty in the armed services of the United States now or any time since the filing of the petition herein.
   - ☐ Respondent is on active duty in the armed services of the United States, but has waived his or her rights pursuant to the Servicemembers Civil Relief Act of 2003.

Jurisdiction

4. Thirty (30) days have elapsed since the filing of the petition herein.

5. *Check one of the two boxes.*
   - ☐ The court has personal jurisdiction over Respondent.
   - ☐ The court does not have personal jurisdiction over Respondent.

6. *Check all that apply.*
   - ☐ Petitioner has been a resident of the State of Missouri for at least 90 days immediately prior to the filing of the petition herein.
   - ☐ Respondent has been a resident of the State of Missouri for at least 90 days immediately prior to the filing of the petition herein.

Marriage

7. The parties were married on _____ . The marriage was registered in the
   (mm/dd/yyyy)
   county of _____ , in the state of _____ .

8. The parties continued to live together until _____ , on or about which date they separated.
   (mm/dd/yyyy)

9. There is no reasonable likelihood that the marriage of the parties can be preserved, and the marriage is therefore irretrievably broken.

Children

10. *Check all that apply.*
    ☐ Petitioner ☐ Respondent is/are not now pregnant.

11. *Check one of the two boxes.*
    - ☐ There are no unemancipated children born or adopted of the marriage.
    - ☐ There is/are _____ unemancipated living child(ren) born or adopted of the marriage.
      (Enter number)

      The name(s), age(s) and last four digits of the Social Security Number(s) of said child(ren) are:

(First Name)	*(Middle Name)*	*(Last Name)*	*(Jr./Sr./III)*	*(Child's Age)*	*(Last 4 digits)*

As used herein, "minor child(ren)" refers to the unemancipated living child(ren) listed above.

It is therefore ordered, adjudged and decreed that:

12. The marriage of Petitioner and Respondent is dissolved.

Maintenance

13. Maintenance to Petitioner *(Check one of the three boxes)*
    - ☐ No maintenance is to be paid to Petitioner by Respondent. This order is not subject to modification.
    - ☐ Respondent is ordered to pay to Petitioner the sum of _____ per month as and for maintenance. Said maintenance ☐ is ☐ is not subject to modification. *(Check "is" or "is not" if you choose this option)*
    - ☐ The court lacks jurisdiction to enter any orders with respect to maintenance of Petitioner.

14. Maintenance to Respondent *(Check one of the three boxes)*
    - ☐ No maintenance is to be paid to Respondent by Petitioner. This order is not subject to modification.
    - ☐ Petitioner is ordered to pay to Respondent the sum of _____ per month as and for maintenance. Said maintenance ☐ is ☐ is not subject to modification. *(Check "is" or "is not" if you choose this option)*
    - ☐ The court lacks jurisdiction to enter any orders with respect to maintenance of Respondent.

15. Wage Assignment for Maintenance (If maintenance is to be paid by either party) *(Check one of the two boxes)*
    - ☐ Income withholding shall be prepared by the obligee and issued by the circuit clerk upon the effective date of this order.
    - ☐ Income withholding shall not issue for the following reason(s):

      _____

      _____

Child Custody (If there are unemancipated children)

16. *Check one of the two boxes.*
    - ☐ The court does **not** have "jurisdiction" (as defined in the Uniform Child Custody Jurisdiction and Enforcement Act, §452.700, RSMo, et seq.) over the custody arrangements of the minor child(ren) and therefore enters no further orders with respect to the custodial arrangements of the minor child(ren).
    - ☐ The court has "jurisdiction" (as defined in the Uniform Child Custody Jurisdiction and Enforcement Act, §452.700, RSMo, et seq.) over the custody arrangements of the minor child(ren).

      The court approves the provisions of Part A of the parenting plan marked Exhibit _____ pertaining to the custodial arrangements of the minor child(ren) and finds that the custodial arrangements contained in said parenting plan are in the best interests of the minor child(ren).

      Therefore, the court orders the provisions of Part A of said parenting plan pertaining to the custodial arrangements of the minor child(ren) and incorporates by reference all of the terms and conditions pertaining to the custodial arrangements of the minor child(ren) set forth in Part A of said parenting plan as if fully set forth herein.

      The sheriff or other law enforcement officers shall enforce the rights of any person to custody or visitation pursuant to §452.425, RSMo.

      _____

      _____

In the event of noncompliance with this order, the aggrieved party may file a verified motion for contempt. If custody, visitation, or third-party custody is denied or interfered with by a parent or third party without good cause, the aggrieved person may file a family access motion with the court stating the specific facts that constitute a violation of the custody provisions of the judgment of dissolution, legal separation, or judgment of paternity. The circuit clerk will provide the aggrieved party with an explanation of the procedures for filing a family access motion and a simple form for use in filing the family access motion. A family access motion does not require the assistance of legal counsel to prepare and file.

Child Support (If there are unemancipated children)

17. *Check one of the two boxes.*
    - ☐ The court does not have jurisdiction to enter any orders with respect to the support of the minor child(ren).
    - ☐ The court orders the provisions of Part B of the parenting plan marked Exhibit _____ , pertaining to the support of the minor child(ren) and incorporates by reference all of the terms and conditions set forth in Part B of said parenting plan as if fully set forth herein.

_____

_____

Marital and Non-marital Property and Marital Debt

18. Division of Property *(Check one of the two boxes)*
    - ☐ The parties have entered into a separation agreement marked Exhibit _____ , which is found to be **not unconscionable**. Said separation agreement is incorporated herein and the parties are ordered to perform the terms and conditions set forth therein as well as such further and other orders contained in this judgment.
    - ☐ The parties have **not** entered into a separation agreement. All marital and non-marital property and marital debt are divided in Exhibit _____ . Said division is fair and equitable and the parties are ordered to perform the terms and conditions set forth therein.

19. Real Property *(Check if applicable)*
    - ☐ The legal description of the real property or properties divided herein is more fully set forth in Exhibit(s) _____ , which is/are incorporated into and made a part of this judgment.

20. Pension and Retirement Plans
If this judgment divides any pension or retirement benefits, the court intends its judgment to be a qualified domestic relations order and retains jurisdiction for the purpose of establishing or maintaining this order as a qualified domestic relations order or to revise or conform its terms so as to effectuate the expressed intent of this order.

21. Other Orders Concerning Property and Debt *(Check if applicable)*

☐ _____ is ordered to pay to _____ the sum of _____ as and for _____ .

22. This judgment divides all marital and non-marital property and marital debt. No other marital or non-marital property or marital debt remains to be divided by the court except as set forth herein.

Attorney's Fees

23. *Check one of the three boxes.*

☐ Neither party is awarded attorney's fees from the other party.

☐ Petitioner shall pay to _____ the sum of _____ as and for Respondent's attorney's fees herein.

☐ Respondent shall pay to _____ the sum of _____ as and for Petitioner's attorney's fees herein.

Name Change

24. *Check all that apply.*

☐ Petitioner is granted restoration of their (maiden or former) name of

_____ _____ _____ _____ .
(First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*

☐ Respondent is granted restoration of their (maiden or former) name of

_____ _____ _____ _____ .
(First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*

Other Orders

25. *Check if applicable.*
    ☐ Other orders are as per the attached Exhibit _____ , which is incorporated by reference as if fully set forth herein.

Court Costs

26. *Check one of the two boxes.*
    ☐ Court costs are to be paid from the court cost deposit(s) previously posted.
    ☐ Court costs are waived.

Waiver of Right to Rehearing (If case is heard by a Commissioner pursuant to §487.010, RSMo, et seq.)

We, the undersigned parties, do hereby acknowledge receipt of the findings and recommendations of the commissioner and waive the right to file a motion for rehearing in this case.

☐ Signature of Petitioner's Attorney _____
☐ Signature of Respondent's Attorney _____
☐ Signature of Guardian ad Litem _____
☐ Signature of Petitioner _____
☐ Signature of Respondent _____
☐ Signature of Third Party _____

(If heard by a Family Court Judge)

_____
(Judge)

_____
(Date)

(If heard by a Family Court Commissioner)

Findings and Recommendations of Commissioner:

_____ _____
(Commissioner) *(Date)*

All orders and these findings and recommendations of the Commissioner are confirmed and adopted as the judgment of the court.

_____ _____
(Judge) *(Date)*

A certified copy of this judgment is to be mailed to the following person(s): *(Check all applicable boxes)*

☐ _____
(Print Name of Petitioner's Attorney)
_____
(Street)
_____
(City, State, Zip)
_____
(Telephone Number with Area Code)

☐ _____
(Print Name of Respondent's Attorney)
_____
(Street)
_____
(City, State, Zip)
_____
(Telephone Number with Area Code)

☐ _____
(Print Name of Guardian ad Litem)
_____
(Street)
_____
(City, State, Zip)
_____
(Telephone Number with Area Code)

☐ _____
(Print Name of Petitioner)
_____
(Street)
_____
(City, State, Zip)
_____
(Telephone Number with Area Code)

☐ _____
(Print Name of Respondent)
_____
(Street)
_____
(City, State, Zip)
_____
(Telephone Number with Area Code)

☐ _____
(Print Name of Third Party)
_____
(Street)
_____
(City, State, Zip)
_____
(Telephone Number with Area Code)